

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1313

By: Humphrey

AS INTRODUCED

An Act relating to cockfighting; amending 21 O.S. 2021, Sections 1692.1, 1692.2, 1692.3, 1692.4 and 1692.8, which relate to cockfighting definitions, offenses and penalties; modifying scope of certain definition; deleting definition; reducing penalties for certain cockfighting offenses; updating statutory citations; providing additional penalties; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1692.1, is amended to read as follows:

Section 1692.1. As used in this act:

~~A. "Cockfight" or "cockfighting" is a fight between birds, whether or not fitted with artificial spurs, knives, or gaffs, and whether or not bets or wagers are made on the outcome of the fight, and includes any training fight in which birds are intended or encouraged to attack or fight with one another.~~

~~B. "Equipment used for training or handling a fighting bird" includes knives or gaffs, cages, pens, feeding apparatuses, training~~

~~pens and other related devices and equipment, and is hereby declared
contraband and subject to seizure.~~

SECTION 2. AMENDATORY 21 O.S. 2021, Section 1692.2, is
amended to read as follows:

Section 1692.2. Every person who willfully instigates or
encourages any cockfight, upon conviction, shall be guilty of a
~~felony~~ misdemeanor. The penalty for a violation of this section
shall be as provided in Section ~~§~~ 1692.8 of this ~~act~~ title.

SECTION 3. AMENDATORY 21 O.S. 2021, Section 1692.3, is
amended to read as follows:

Section 1692.3. Every person who keeps any pit or other place,
or knowingly provides any equipment or facilities to be used in
permitting any cockfight, upon conviction, shall be guilty of a
~~felony~~ misdemeanor. The penalty for a violation of this section
shall be as provided in Section ~~§~~ 1692.8 of this ~~act~~ title.

SECTION 4. AMENDATORY 21 O.S. 2021, Section 1692.4, is
amended to read as follows:

Section 1692.4. Every person who does any act or performs any
service in the furtherance of or to facilitate any cockfight, upon
conviction, shall be guilty of a ~~felony~~ misdemeanor. Such
activities and services specifically prohibited by this section
include, ~~but~~ and are ~~not~~ limited to: ~~promoting or the~~ refereeing of
birds at a cockfight, ~~advertising a cockfight, or serving as a~~
~~stakes holder of any money wagered on any cockfight.~~ The penalty

1 for a violation of this section shall be as provided in Section 8
2 1692.8 of this ~~act~~ title.

3 SECTION 5. AMENDATORY 21 O.S. 2021, Section 1692.8, is
4 amended to read as follows:

5 Section 1692.8. A. Every person who, upon conviction, is
6 guilty of a felony under any of the provisions of ~~Sections 2, 3, 4,~~
7 ~~or 5~~ Section 1692.5 of this ~~act~~ title shall be punished by
8 imprisonment in the ~~state penitentiary~~ custody of the Department of
9 Corrections for not less than one (1) year nor more than ten (10)
10 years, or shall be fined not less than Two Thousand Dollars
11 (\$2,000.00) ~~nor more than~~ and not exceeding Twenty-five Thousand
12 Dollars (\$25,000.00), or by both such fine and imprisonment.

13 B. Every person who upon conviction is guilty of any of the
14 provisions of ~~Section 6~~ Sections 1692.2, 1692.3 or 1692.4 of this
15 ~~act~~ title shall be punished by ~~imprisonment in the county jail for~~
16 ~~not more than one (1) year, or shall be fined a fine not more than~~
17 ~~exceeding~~ Five Hundred Dollars (\$500.00), ~~or by both such fine and~~
18 ~~imprisonment.~~ For a second conviction, the person shall be punished
19 by a fine not exceeding One Thousand Dollars (\$1,000.00). For a
20 third or subsequent conviction, the person shall be punished by a
21 fine not exceeding Two Thousand Dollars (\$2,000.00).

22 SECTION 6. This act shall become effective November 1, 2025.
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24 60-1-10224 GRS 11/20/24